

25VECV02576 25VECV02576

County: los-angeles

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Case Number: 25VECV02576 Hearing Date: June 25, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Guadalupe

Jimenes Ribera,

Plaintiff,

v.

Vivi

Edri, et al.

Defendants.

Case Number Department

25VECV02576 107

COURT'S [Tentative] ORDER RE:

Motion

to Compel Further
Discovery Responses

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant,
in part, and deny, in part.

I.
BACKGROUND

This action arises from a motor vehicle
accident that occurred on June 7, 2023. (Complaint p. 5.) Plaintiff Guadalupe Jimenes Ribera
("Plaintiff") sustained injuries arising from the accident. (Complaint p. 5.)

On May 8, 2025, Plaintiff filed a complaint
against Defendants Vivi Edri, Avivit Edri, and Does 1 to 20, alleging causes of
action for: (1) motor vehicle; and (2) general negligence and negligence per
se.

On March 9, 2026, Plaintiff filed a motion to
compel Defendant Vivi Edri and Avivit Edri. further responses to Form
Interrogatories and Production of Documents and for sanctions (the "Motion").
On May 12, 2026, Defendants Vivi Edri and Avivit Edri ("Defendants") filed an
opposition. On May 18, 2026, Plaintiff filed a reply.

II.
SEPARATE
MOTIONS

Plaintiff filed a single motion to compel
further responses to two sets of discovery from two Defendants. (Motion p. 2.)
The Motion should have been filed as four motions, one for each discovery set
and each Defendant.

Combining motions deprives the court of filing
fees, unfairly jumps ahead of other litigants, and negatively impacts the
court's calendar by placing more motions on the calendar than slots have been
provided by the court's reservation system.

“[I]t

is mandatory for court clerks to demand and receive the fee required by statute before documents or pleadings are filed.” (Duran v. St. Luke's Hospital (2004) 114 Cal.App.4th 457, 459.) Plaintiff is ordered to pay the requisite filing fees.

III.

TIMELINESS

A motion to compel further responses to a demand for inspection, copying, testing, or sampling must be brought within 45 days of receiving the challenged responses, or as otherwise agreed upon in writing. (Code Civ. Proc. § 2031.310, subd. (c).) A motion to compel further responses to interrogatories must be brought within 45 days of receiving the challenged responses, or as otherwise agreed upon in writing. (Code Civ. Proc. § 2030.300, subd. (c).) Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Defendants served Plaintiff

with responses to the Form Interrogatories and Requests for Production of Documents (“RFPs”) on January 20, 2026, by electronic service. (Gomez Declaration ¶¶ 2, 4; Ex. 2 pdf pp. 51, 69.) Plaintiff filed the Motion less than 45-days, plus two court days for electronic service, after January 20, 2026. Thus, the Motion is timely.

IV.

MEET AND CONFER

Motions to compel further

responses to interrogatories and demands for inspection, copying, testing, or sampling must be accompanied by meet and confer declarations. (Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

In opposition, Defendants argue Plaintiff failed to adequately meet and confer. (Opposition p. 2.) In reply, Plaintiff argues the meet and confer efforts were sufficient and Defendants’ counsel ignored

Plaintiff's counsel's requests to meet and confer by telephone. (Reply p. 3.)

Plaintiff's counsel submits a declaration stating they sent Defendants' counsel three meet and confer letters. (Gomez Declaration ¶¶ 5, 7, 9.) Code of Civil Procedure section 2016.040, subdivision (a) requires meeting and conferring in person, by telephone, or by videoconference. Meeting and conferring by letter is insufficient.

Plaintiff failed to satisfy the meet and confer requirements.

V.

PLAINTIFF'S SEPARATE STATEMENT

California

Rules of Court, rule 3.1345(a) requires motions to compel further responses to interrogatories and a demand for inspection of documents or tangible things be accompanied by a separate statement. Per California Rules of Court, rule 3.1345(c):

A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
- (2) The text of each response, answer, or objection, and any further responses or answers;
- (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to

each matter in dispute;

(4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;

(5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and

(6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document.

Trial

courts have discretion to deny motions to compel discovery because of defective separate statements. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893.)

Plaintiff's

separate statement fails to set forth the definitions for all of the referenced defined terms. For example, Plaintiff's discovery refers to the "INCIDENT", "RELATED TO", and "RELATING TO[.]" (See, e.g., Separate Statement pp. 2, 6, 9.) But Plaintiff's separate statement fails to set forth those definitions. Thus, Plaintiff's separate statement does not comply with California Rules of Court, rule 3.1345.

VI.

LEGAL STANDARD

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310, subd. (a).) "The motion shall set forth specific facts showing good cause justifying the discovery sought by the

demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).)ccc

“In a motion under subdivision (a)

relating to the production of electronically stored information, the party or affected person objecting to or opposing the production, inspection, copying, testing, or sampling of electronically stored information on the basis that the information is from a source that is not reasonably accessible because of the undue burden or expense shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense.” (Code Civ. Proc., § 2031.310, subd. (d).)ccc

If the responding party responds to

interrogatories with inappropriate objections or evasive or incomplete answers, the propounding party may move for an order compelling a further response. (Code Civ. Proc., § 2030.300, subd. (a).) The responding party bears the burden of justifying any objection or insufficient answer to a special interrogatory. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220–21 [“Defendants here had the burden of showing facts from which the trial court might find that the interrogatories were interposed for improper purposes. The statute does not require any showing of good cause for the serving and filing of interrogatories.”].)

VII.

DISCUSSION

Plaintiff

moves to compel Defendants to provide further responses to Form Interrogatories and RFPs. (Motion p. 2.)

Form

Interrogatory No. 9.1 states: “Are there any other damages that you attribute to the INCIDENT? If so, for each item of damage state: (a) the nature; (b) the date it occurred; (c) the amount; and (d) the name, ADDRESS, and telephone number of each PERSON to whom an obligation was incurred.” (Separate Statement p. 2.)

Defendants

responded:

Objection. This interrogatory seeks

information that is not relevant to the subject matter of this action and as such not likely to lead to the discovery of admissible evidence since responding party is not making an affirmative claim for damages in their capacity as responding party. Further, the interrogatory invades responding party's privacy rights under the United States and California constitutions, statutory law, and common law.

(Separate
Statement p. 2.)

Form

Interrogatory No. 9.1 seeks basic relevant background information about damages. If Defendants are not attributing damages to the incident, Defendants may say so. Nothing before the court indicates it invades privacy rights.

Defendants

are ordered to provide a further response to Form Interrogatory No. 9.1.

Form

Interrogatory No. 9.2 states: "Do any DOCUMENTS support the existence or amount of any item of damages claimed in interrogatory 9.1? If so, describe each document and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT." (Separate Statement p. 3.)

Defendants

responded:

Objection. This interrogatory seeks information that is not relevant to the subject matter of this action and as such not likely to lead to the discovery of admissible evidence since responding party is not making an affirmative claim for damages in their capacity as responding party. Further, the interrogatory invades responding party's privacy rights under the United States and California constitutions, statutory law, and common law.

(Separate
Statement p. 3.)

Form

Interrogatory No. 9.2 seeks basic relevant background information about damages.

If Defendants are not attributing damages to the incident, Defendants may say so. Nothing before the court indicates it invades privacy rights.

Defendants

are ordered to provide a further response to Form Interrogatory No. 9.2.

Form

Interrogatory No. 12.4 states:

Do YOU OR ANYONE ACTING ON YOUR

BEHALF know of any photographs, films, or videotapes depicting any place, object, or individual concerning the INCIDENT or plaintiff's injuries? If so, state: (a) the number of photographs or feet of film or videotape; (b) the places, objects, or persons photographed, filmed, or videotaped; (c) the date the photographs, films, or videotapes were taken; (d) the name, ADDRESS, and telephone number of the individual taking the photographs, films, or videotapes; and (e) the name, ADDRESS, and telephone number of each PERSON who has the original or a copy of the photographs, films, or videotapes.

(Separate

Statement p. 4.)

Defendants

responded:

(a) Five (5) photographs (b) Scene

of the incident (c) 06/07/2023 (d) Unknown (a) Four (4) photographs (b) Scene

of the Incident (c) 06/07/2023 (d) Responding Defendant (a) Sixty (60)

photographs (b) 06/19/2023 (c) Eric Ramirez, IAA Inc. (a) Eighty-one (81)

photographs (b) Defendant's vehicle (c) Unknown (d) Unknown (e) Responding

Defendant's insurance carrier and counsel

(Separate

Statement p. 4.)

In

opposition, Defendants state they are preparing a supplemental response to Form Interrogatory No. 12.4 containing the missing information. (Opposition p. 5.)

Defendants are ordered to provide such supplemental response to Form

Interrogatory No. 12.4.

RFP

No. 4 seeks "Any and all reports, memoranda, letters, and/or notes RELATED TO the INCIDENT." (Separate Statement p. 6.)

Defendants

responded:

Objection. This demand is vague and ambiguous in that it does not define "reports, memoranda, letters, and/or notes" with sufficient particularity to allow responding party to determine whether the demand invades the attorney-client privilege and/or attorney work product privilege. Responding party further objects to this demand to the extent this request seeks to ascertain information which a consultant and/or expert witness has provided this responding party in the preparation of their case and premature disclosure of expert information in violation of CCP § 2034.010 et seq. The demand does not specifically or sufficiently describe each individual item or reasonably particularize a category of item sought by the demand as required by Code of Civil Procedure § 2031.030(c)(1). The demand seeks documents protected by the attorney work product privilege. A privilege log cannot and need not be provided based on the demand itself, because identifying the specific documents would disclose defense counsel's tactics and strategy in preparing the case for trial, which is protected attorney work product and not discoverable. (Code Civ. Proc., § 2018.020.) The document(s) sought is protected from disclosure by the attorney-client privilege. Any and all communication, documentation of said communication, and written communication between Defendants, their insurance carrier, and their counsel is privileged under the attorney client privilege and the attorney work product doctrine. This request is an impermissible attempt to force defendant's counsel to identify the date and subject matter of protected communications including but not limited to the entire file of defendant's counsel and their insurance carrier. Any information Defendant may have given to their insurance carrier concerning this incident, even one given in anticipation of litigation, is privileged communication, as being between attorney and client, and protected from disclosure. (*Soltani-Rastegar v. Superior Court* (1989) 208 Cal.App.3d 424, 426-427.) Defendant's insurance carrier was required to and defended her in this lawsuit through his attorney. Any information was intended for the information or assistance of the attorney so defending her.

The

court agrees with Defendants that this RFP is vague and ambiguous because it does not define reports, memoranda, letters, and/or notes and it also does not describe with reasonable particularity the categories requested.

Defendants

are not ordered to provide a further response to RFP No. 4.

RFP

No. 14 seeks "All DOCUMENTS identified, referred to, and relied on in YOUR response to Plaintiff's Form Interrogatories (Set One)." (Separate Statement p. 8.)

Defendants

responded:

Objection. The demand seeks

documents equally available to propounding party. Responding Defendant identifies Plaintiff's medical records. In addition to the medical records produced in response to Defendant's Request for Production of Documents Set 1, Responding Defendant is in possession of medical records that were subpoenaed, with due notice to Plaintiff's attorney, through Ontellus National, 170 E. Arrow Hwy., San Dimas, CA, 91773; (800) 229-7477; Ontellus.com. Therefore, good cause to justify this request for production is lacking. (See Code Civ. Proc., 2031.310(b)(1).)

Without waiving said objection and

in regard to non-equally available documents, defendant responds:

- Estimate for Responding

Defendant's vehicle, Exhibit "C"

- Photographs identified in

Defendant's response to Form Interrogatory No. 12.4, Exhibit "A"

(Separate

Statement pp. 8-9.)

Defendants'

response is insufficient. It is unclear what documents Defendants are referring

to that are purportedly equally available to Plaintiff.

Defendants

are ordered to provide a further response to RFP No. 14.

RFP

No. 17 seeks: "All DOCUMENTS RELATING TO YOUR DRIVING RECORD (as used herein the term "DRIVING RECORD" means and refers to prior tickets, car accidents, collisions, citations, claims, or lawsuits against Defendant AVIVIT EDRI)[.]" (Separate Statement p. 9.)

Defendants

responded:

Objection. This request is not limited to a reasonable time and scope in relation to the subject matter of this litigation and thus is overbroad, unduly burdensome and oppressive. The demand seeks production of a document(s) that is not relevant to any disputed fact that is of consequence to the determination of this action because the document(s) does not prove or disprove the issues of liability or damages. Moreover, the request is not reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010.) The demand does not specifically or sufficiently describe each individual item or reasonably particularize a category of item sought by the demand as required by Code of Civil Procedure § 2031.030(c)(1). The demand seeks documents equally available to propounding party, and therefore good cause to justify this request for production is lacking. (See Code Civ. Proc., 2031.310(b)(1).) Further, this request is overly broad and invades the potential privacy of third persons.

(Separate
Statement p. 10.)

In

opposition, Defendants cite authority indicating evidence of a driver's previous accidents would be inadmissible. (Opposition p. 9.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement. Admissibility is not the test, and it is sufficient if the information sought might reasonably lead to other, admissible evidence." (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117, original italics.) Thus, admissibility is not the

test.

However,

as written, the definition of "DRIVING RECORD" is not limited to subjects that would normally be encompassed by a person's driving record. It encompasses all claims and lawsuits involving Defendant. Plaintiff has not set forth specific facts justifying this RFP.

Defendants

are not ordered to provide a further response to RFP No. 17.

RFP

No. 23 seeks: "Any and all digital recordings from June 7, 2023 including but not limited to: dash camera footage, photos, audio, text messages or video recordings of the INCIDENT or surrounding the INCIDENT which is the basis of this case." (Separate Statement p. 11.)

Defendants

responded:

The production, inspection, copying, testing, sampling, and related activity demanded, will be allowed in whole, and all documents or things in the demanded category that are in responding party's possession, custody, or control are attached as follows: photographs from the scene of the incident and photographs of Plaintiff's and Defendant's vehicles, Exhibit "A".

(Separate

Statement p. 11.)

Plaintiff

argues Defendants' response is insufficient because it references only photographs. (Separate Statement p. 11.) But Defendants state they will comply in whole. Thus, this argument is meritless.

Plaintiff

also argues Defendants testified at their deposition there are additional photographs. (Separate Statement p. 11.) In opposition, Defendants state they have produced the referenced photographs. (Opposition p. 10.) Thus, no additional response here appears to be necessary.

Finally,

Plaintiff states Defendants testified they have phone records from the date of the incident, and “[p]hone records for the date of the accident – which would show calls and text messages made or received at or around the time of the collision – are plainly responsive to this request.” (Separate Statement p. 11.) The court is not persuaded phone records are “plainly responsive” to RFP No. 23’s request for “digital recordings[.]”

Defendants

are not ordered to provide a further response to RFP No. 23.

RFP

No. 24 seeks:

Any and all data, recordings, downloads, or printouts obtained from the Event Data Recorder (EDR), Airbag Control Module (ACM), Sensing Diagnostic Module (SDM), telematics system, or any other onboard recording device installed in the defendant vehicle involved in the collision described in the Complaint, including but not limited to data concerning speed, braking, throttle, seatbelt use, steering input, or airbag deployment for the INCIDENT.

(Separate

Statement p. 12.)

RFP

No. 25 seeks:

Any and all digital data, telematics data, black box recordings, or other electronic information generated by or stored within the subject vehicle or any system connected to it (including but not limited to the manufacturer's telematics service, such as OnStar, Ford Sync, or Uber app data) that relates to the vehicle's operation at or near the time of the collision alleged in the Complaint.

(Separate

Statement p. 12.)

RFP

No. 26 seeks: "Any and all documents, communications, or reports concerning the retrieval, download, or preservation of any event data recorder, telematics, or similar electronic vehicle data, including any third-party service used to extract or interpret such data." (Separate Statement p. 12.)

Defendants

responded to RFP Nos. 24, 25, and 26:

Objection. Event data recorder data

can only be retrieved by an expert, and whether defense counsel hired an expert to obtain data from an event data recorder, and if so, any data obtained, is work product obtained by the initiative of counsel in preparing the case for trial. (See *Williamson v. Superior Court* (1978) 21 Cal.3d 829, 838 ["work product rules are designed explicitly to protect a party's expense and industry in seeking out expert testimony"].) As is the case for an attorney-obtained witness statement, counsel may have expended time and effort in identifying and locating the data, securing an expert to extract the data, and preserving said data, and plaintiff is not without recourse. Plaintiff may seek to inspect the vehicle and download the data for himself or herself to find out what information may be available that is relevant to the litigation. (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 496.) Under such circumstances, "[a]bsent a showing that a [EDR] is no longer available or accessible, or some other showing of unfair prejudice or injustice (§ 2018.030, subd. (b)), the Legislature's declared policy is to prevent an attorney from free riding on the industry and efforts of opposing counsel (§ 2018.020, subd. (b))." (*Coito*, supra, 54 Cal.4th at p. 496.)

In

reply, Plaintiff states Defendants' counsel represented at the IDC that they do not have the electronic data but would arrange for Plaintiff's expert to extract the data. (Reply p. 8.) Thus, no further response to RFP Nos. 24, 25, and 26 appears to be necessary.

Defendants

are not ordered to provide further responses to RFP Nos. 24, 25, and 26.

VIII. SANCTIONS

"[T]he court shall impose a monetary

sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.300 subd. (c).)¿

“The court shall impose a monetary

sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

Plaintiff

seeks \$2,075.58 in monetary sanctions against Defendants. (Motion p. 3.) This reflects four hours of attorneys' fees to prepare the Motion and attend the hearing, at the rate of \$500.00 per hour, and motion and filing fees in the sum of \$73.80. (Gomez Declaration ¶ 11.)

The court

finds Defendants failed to act with substantial justification and no other circumstances make imposing sanctions unjust. Thus, the court grants Plaintiff's request for monetary sanctions.

IX.

CONCLUSION

For

the foregoing reasons, the Motion is granted, in part, and denied, in part. Defendants are ordered to provide further responses to the Form Interrogatories and RFPs, consistent with the court's order above, within thirty (30) days of this order. The court grants Plaintiff's request for monetary sanctions in the sum of \$2,075.58, to be paid by Defendants to Plaintiff's counsel within thirty (30) days of this order.

Dated: June

25, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court